

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Keyne Jean Villert	Team: Team # 3	CCRB Case #: 201311559	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Monday, 12/09/2013 5:20 PM	Location of Incident: § 87(2)(b) and 30th Precinct stationhouse		18 Mo. SOL 6/9/2015		Precinct: 30
Date/Time CV Reported Tue, 12/10/2013 1:20 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 12/10/2013 1:20 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Fizgeralda Sanchez	28803	944167	030 PCT
2. POM Ronald Baird	29154	916965	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Finamore	00698	948967	030 PCT
2. POF Magdalen Domenech	19232	943175	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Fizgeralda Sanchez	Abuse: Inside § 87(2)(b) in Manhattan, PO Fizgeralda Sanchez questioned § 87(2)(b)	A . Exonerated
B . POM Ronald Baird	Abuse: Inside § 87(2)(b) in Manhattan, PO Ronald Baird questioned § 87(2)(b)	B . Exonerated
C . POF Fizgeralda Sanchez	Abuse: Inside § 87(2)(b) in Manhattan, PO Fizgeralda Sanchez stopped § 87(2)(b)	C . Substantiated
D . POM Ronald Baird	Abuse: Inside § 87(2)(b) in Manhattan, PO Ronald Baird stopped § 87(2)(b)	D . Substantiated
E . POF Fizgeralda Sanchez	Abuse: Inside § 87(2)(b) in Manhattan, PO Fizgeralda Sanchez arrested § 87(2)(b)	E . Substantiated
F . POF Fizgeralda Sanchez	Off. Language: Inside the 30th Precinct stationhouse, PO Fizgeralda Sanchez made remarks to § 87(2)(b) based upon race.	F . Unsubstantiated

Case Summary

On December 10, 2013, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) via its Call Processing System.

On December 9, 2013, at approximately 5:20 p.m., § 87(2)(b) was inside the lobby of his residential building, located at § 87(2)(b) in Manhattan, when officers entered said lobby and approached him. The following allegations resulted:

- **Allegation A – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Fitzgeralda Sanchez questioned § 87(2)(b)**

- **Allegation B – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Ronald Baird questioned § 87(2)(b)**

§ 87(2)(g)

it is therefore recommended that **Allegations A and B** be closed as **exonerated**.

- **Allegation C – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Fitzgeralda Sanchez stopped § 87(2)(b)**

- **Allegation D – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Ronald Baird stopped § 87(2)(b)**

§ 87(2)(g)

Thus, it is recommended that **Allegations C and D** be closed as **substantiated**.

- **Allegation E – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Fitzgeralda Sanchez arrested § 87(2)(b)**

§ 87(2)(g)

it is therefore recommended that **Allegation E** be closed as **substantiated**.

- **Allegation F – Offensive Language: Inside the 30th Precinct stationhouse, PO Fitzgeralda Sanchez made remarks to § 87(2)(b) based upon race.**

§ 87(2)(g)

Thus, it is recommended that **Allegation F** be closed as **unsubstantiated**.

This case was initially assigned to Inv. Flannery Gallagher on December 10, 2013. On July 25, 2014, following Inv. Gallagher's resignation from the CCRB, the case was reassigned to the undersigned.

This case was not eligible for mediation because the victim reported having sustained an injury as a result of this incident.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a black man § 87(2)(b), and has black hair and brown eyes.

Statements to Medical Personnel

Between December 9, 2013, and December 23, 2013, § 87(2)(b) stated to Emergency Medical Technicians (EMT), and personnel from § 87(2)(b) and § 87(2)(b), that he has a pre-existing back injury, which resulted from an accident, causing pain to his left leg and back. § 87(2)(b) added that this injury was aggravated as a result of being placed in handcuffs. § 87(2)(b) also indicated that his only new injury amounted to pain to his left wrist from wearing handcuffs (encl. MR1-MR120).

CCRB Testimony

On December 31, 2013, § 87(2)(b) was interviewed at the CCRB (encl. D4-D9). § 87(2)(g)

On December 9, 2013, at approximately, 5:20 p.m., § 87(2)(b) had been sitting in the vestibule of his building, located at § 87(2)(b) in Manhattan, for approximately five minutes when two officers, identified via investigation as PO Fitzgerald Sanchez and PO Ronald Baird from the 30th Precinct, approached him. § 87(2)(b) lives inside the building; however, he was waiting on his friend, § 87(2)(b) § 87(2)(b) to come bring him the keys to his apartment. § 87(2)(b) has a disability due to an injury and § 87(2)(b) assists him with his needs.

The officers first asked § 87(2)(b) whether he lived inside the building. § 87(2)(b) replied that he does live there and that he was waiting on a friend to bring him his keys. § 87(2)(b) eventually provided his identification, in the form of a New York State Benefit Identification Card and a Reduced-Fare Metrocard for disabled individuals, to the officers upon request. § 87(2)(b) explained that his New York State identification was inside his apartment and showed the officers receipts for his rent payments.

§ 87(2)(b) eventually provided PO Sanchez with his keys which she then used to open the front entrance of the building leading to the vestibule. § 87(2)(b) did not have the keys which open the door past the vestibule and the one for his apartment. Soon thereafter, § 87(2)(b) arrived and explained that she was in possession of the missing keys.

Thereafter, PO Sanchez handcuffed § 87(2)(b)'s right wrist, at which point he repeatedly asked why he was being arrested. PO Sanchez informed § 87(2)(b) that he was being arrested § 87(2)(b). Both of § 87(2)(b)'s wrists were eventually handcuffed with two sets of handcuffs and he was escorted out of the building and into a patrol car. § 87(2)(b) was then transported to the 30th Precinct stationhouse by two officers, identified via investigation as PO Magdalen Domenech and PO Joseph Finamore, both also from the 30th Precinct.

While at the stationhouse, § 87(2)(b) was placed inside a holding cell, at which point he repeatedly requested PO Sanchez for medical attention. PO Sanchez eventually stated, "You people act like this when you get locked up." § 87(2)(b) interpreted PO Sanchez' comment as an offensive remark based upon his race. PO Baird was nearby PO Sanchez at the time she uttered

the remark. PO Sanchez then stated that she would try to get § 87(2)(b) an ambulance while adding that she may not be able to get one for him if he continued to make noise. § 87(2)(b) waited for six hours before an ambulance finally came to transport him to § 87(2)(b).

§ 87(2)(b) reported that his pre-existing back injury was exacerbated due to his being handcuffed and shackled, and due to having to sit in the cell for a long period of time.

Attempts to Interview Witness

Between January 17, and February 6, 2014, Inv. Gallagher exhausted all contact attempts to § 87(2)(b). On January 27, 2014, Inv. Gallagher reached § 87(2)(b) who stated that she would call Inv. Gallagher back at a later time. A November 5, 2014, inquiry with the New York City Department of Correction Inmate Lookup database revealed that § 87(2)(b) was not incarcerated at the time of the contact attempts nor of the inquiry (encl. N). To date, § 87(2)(b) has not contacted the CCRB to cooperate with its investigation of this case.

Other Evidence

Video Footage

On January 13, 2013, Inv. Gallagher conducted field work at the incident location and obtained video footage captured by the building's security cameras. The recordings are located on digital files "201311559_20140113_1658_DM.avi" and "201311559_20140113_1658A_DM.avi," in Investigative Action numbers 51 and 52, respectively. The recordings show the following:

The first video first shows § 87(2)(b) sitting down on a set of steps inside a vestibule as PO Sanchez and PO Baird approach him. § 87(2)(b) appears to be using a cell phone. PO Baird then approaches § 87(2)(b) who then stands up, gets out of and reenters the frame, and then sits back down. PO Sanchez and PO Baird are surrounding § 87(2)(b). At some point, § 87(2)(b) approaches the front door from outside of the building, at which point § 87(2)(b) stands up and walked to the door, away from PO Sanchez. As § 87(2)(b) walks to the door, PO Sanchez approaches him by the door and extends her left arm out toward him, thus blocking his path. § 87(2)(b) pushes the door slightly open, without making contact with PO Sanchez, and § 87(2)(b) then enters the vestibule (encl. D1).

The second video first shows § 87(2)(b), § 87(2)(b), PO Sanchez, and PO Baird standing in the vestibule. § 87(2)(b) is eventually handcuffed by PO Sanchez and PO Baird. § 87(2)(b) initially resisted arrest by not placing his hands behind his back, raising his arms up, and handing items to PO Baird (encl. D2).

Photographs of § 87(2)(b)

The photographs, taken by Inv. Gallagher and retrieved from GoogleMaps.com, indicate that § 87(2)(b) was seated on a set of stairs inside the vestibule leading to a locked door allowing full access to the building. The set of stairs consisted of two steps. Moreover, the photographs also show that signs in English and Spanish, prohibiting trespassing, are clearly located directly outside and to the sides of the building's entrance (encl. C1-C5).

NYPD Statements:

Subject Officer: PO FIZGERALDA SANCHEZ

- PO Sanchez was § 87(2)(b) at the time of the incident. She is a Hispanic woman, § 87(2)(b), and has brown hair and brown eyes.
- On December 9, 2013, PO Sanchez was assigned to Conditions. PO Sanchez was dressed in uniform and was working with PO Baird in an unmarked patrol car. Det. Schierle worked from 12 p.m. to 8:35 p.m.

§ 87(2)(a) 160.50

Memo Book Entries

At the time of her interview, PO Sanchez only read the entries summarized below, which she indicated were the only ones she completed in regard to this incident:

At 5:25 p.m., PO Sanchez conducted a vertical patrol of § 87(2)(b) and stopped § 87(2)(b) under suspicion of burglary and trespass. At 5:30 p.m., PO Sanchez arrested § 87(2)(b) who was transported to the stationhouse, and notified her sergeant of the arrest. At 5:40 p.m., PO Sanchez arrived at the stationhouse and processed the arrest of § 87(2)(b) who made two phone calls. At 8:05 p.m. and 9:10 p.m., PO Sanchez continued processing the arrest of § 87(2)(b)

A copy of PO Sanchez' memo book indicates that PO Sanchez had not read the entries summarized below:

At 11:20 p.m., PO Sanchez spoke with Assistant District Attorney Laura Richenderfer, from the Manhattan District Attorney's Office. PO Sanchez explained that, while conducting a vertical patrol, she observed § 87(2)(b) sitting on a set of stairs inside of § 87(2)(b) § 87(2)(b) was acting like a look out. PO Sanchez stopped for suspicion of burglary of the building, which has "No Trespass" signs. § 87(2)(b) refused to answer the questions of PO Sanchez, at which point she informed him that, if he didn't live there, he had to leave the building. § 87(2)(b) refused to leave and PO Sanchez informed him of the presence of the "No Trespass" signs. Thereafter, § 87(2)(b) stated that he lives inside the building. PO Sanchez requested § 87(2)(b) for his identification, due to his suspicious behavior and prior refusal to answer questions, which he provided. § 87(2)(b) then became irate, laughed, and stated, "Bitch, get the fuck out of here," "I'm not talking to you bitch," and "I'll talk to your partner." § 87(2)(b) then stated, "Fuck you," "I'll cracked you up right now," "I don't give a fuck," and, "You're a cop, I'll fuck you up." At that point, PO Sanchez feared for her safety and tried to place § 87(2)(b) under arrest. § 87(2)(b) § 87(2)(b) resisted arrest, causing a crowd to gather outside. When in custody, § 87(2)(b) § 87(2)(b) stated to PO Sanchez, "I'm going to kill you, bitch." PO Sanchez explained to § 87(2)(b) that the building was enrolled in the Clean Halls program, thus allowing officers to search it for trespassers.

§ 87(2)(g)

§ 87(2)(g)

The District Attorney's Office declined to prosecute § 87(2)(b)'s criminal case. § 87(2)(b)

§ 87(2)(g)

At 11:10 p.m., PO Sanchez received a Decline to Prosecute form (encl. E1-E6).

CCRB Testimony

On February 13, 2014, PO Sanchez was interviewed at the CCRB (encl. E10-E13). Her statement is summarized below.

On December 9, 2013, at approximately 5:20 p.m., PO Sanchez was driving by § 87(2)(b) which is a "No Trespass" building, with PO Baird when she observed § 87(2)(b) through the glass to its vestibule, sitting down "doing something." However, PO Sanchez could not tell what § 87(2)(b) was doing and she decided to investigate the situation.

PO Sanchez and PO Baird then entered the building via its unlocked entrance. PO Sanchez asked § 87(2)(b) for his identification and what he was doing there. § 87(2)(b) did not answer PO Sanchez's questions and started acting agitated by moving his hands, punching the palm of one of his hands, and reaching toward his pockets. PO Sanchez instructed § 87(2)(b) to leave the premise if he didn't live there. § 87(2)(b) first stated that he could do whatever he wanted and eventually mentioned that he lives there.

At some point, § 87(2)(b) arrived and § 87(2)(b) lunged at PO Sanchez and then opened the door. PO Sanchez believed § 87(2)(b) was about to strike her; however, he instead let § 87(2)(b) inside the premise. PO Sanchez first stated that § 87(2)(b) explained that she "sells stuff" to § 87(2)(b) causing PO Sanchez to believe that she may be a drug-dealer. At another point, § 87(2)(b) stated to PO Sanchez, "I can knock you right now."

PO Sanchez first stated that § 87(2)(b) never provided his keys to the officers; however, she later stated that he tried to do so but that she had refused to take them. PO Sanchez added that § 87(2)(b) never provided his identification; however, after reviewing video footage of the incident, she admitted that he had given her a BJ's Store membership card.

Soon thereafter, PO Sanchez attempted to arrest § 87(2)(b) however, he first resisted before he complied. PO Sanchez explained that § 87(2)(b) resisted by first attempting to walk toward § 87(2)(b) and then eventually flailing his arms and placing his body against a wall. § 87(2)(b) then stated, "I'm going to knock you guys out," and complained of pain to his back. § 87(2)(b) was eventually transported to the 30th Precinct stationhouse.

At the stationhouse, § 87(2)(b) explained that he had been waiting for § 87(2)(b) without explaining why. § 87(2)(b) requested medical attention from PO Sanchez on multiple occasions. PO Sanchez replied that § 87(2)(b) would first be fingerprinted before she would call an ambulance for him. PO Sanchez explained that § 87(2)(b) did not appear to have a back injury due to his kicking a chair and banging on surfaces while inside his holding cell. When asked whether she informed § 87(2)(b) she wouldn't call an ambulance for him if he did not become quiet, she replied, "Not like that." However, she did not remember whether she stated anything to that effect.

PO Sanchez did not remember stating anything to the effect of, “This is how you people act when you get locked up.” PO Sanchez did not know how long after § 87(2)(b)'s initial request for medical attention the ambulance was called.

At the conclusion of his interview, PO Sanchez viewed the video footage detailed below and did not add any significant information to her statement thereafter.

Subject Officer: PO RONALD BAIRD

- PO Baird was § 87(2)(b) at the time of the incident. He is a white man, § 87(2)(b), and has brown hair and brown eyes.
- On December 9, 2013, PO Baird worked the same tour and assignment as PO Sanchez.

Memo Book Entries

At 5:27 p.m., PO Baird conducted a vertical patrol of § 87(2)(b). At 5:30 p.m., PO Sanchez arrested § 87(2)(b) who was then transported to the stationhouse. At 5:40 p.m., PO Baird arrived at the stationhouse (encl. G1-G3).

CCRB Testimony

On February 26, 2014, PO Baird was interviewed at the CCRB (encl. G4-G7). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Sanchez asked PO Baird to stop the patrol car to conduct a vertical patrol of § 87(2)(b). PO Sanchez also mentioned having observed an individual there; however, she did not detail her observation. Prior to the stop, PO Baird did not observe § 87(2)(b) who was sitting on steps, make any movements.

PO Sanchez asked § 87(2)(b) for his identification and explained that she wanted him to prove that he lives inside the building. PO Baird did not know whether § 87(2)(b) explained the reason for his sitting in the vestibule. § 87(2)(b) did mention that his identification with his picture and address was inside his apartment. PO Baird did not remember whether § 87(2)(b) provided any identification. § 87(2)(b) did not provide rent receipts.

PO Baird asked § 87(2)(b) whether he could open the interior door past the vestibule that is usually unlocked. § 87(2)(b) opened the door, which was unlocked, by simply pulling it. PO Sanchez again asked § 87(2)(b) for his keys or identification, at which point § 87(2)(b) started placing his hands inside his clothing and she then handcuffed him. As he was being handcuffed, § 87(2)(b) mentioned that he has a back injury. § 87(2)(b) had difficulties entering the patrol car and PO Sanchez and PO Fenimore assisted with positioning him inside it.

A few minutes after arriving at the stationhouse, § 87(2)(b) requested medical attention for the first time; however, PO Baird did not remember to whom the request was made. PO Fenimore was present for § 87(2)(b)'s request. PO Baird did not remember whether PO Sanchez was present at the time of the request. Soon thereafter, PO Baird informed PO Sanchez that § 87(2)(b) requested medical attention.

At some point, PO Baird observed PO Sanchez speak with § 87(2)(b) by his holding cell. § 87(2)(b) was argumentative with PO Sanchez. However, PO Baird did not hear PO Sanchez say anything to the effect of, “You people act like this when you get locked up.”

PO Baird did not remember whether § 87(2)(b) mentioned he had keys for the building. PO Baird did not remember whether § 87(2)(b) mentioned she was in possession of § 87(2)(b)'s keys. PO Sanchez eventually obtained keys which she attempted to use on the front door; however, she stated that they did not work. PO Baird did not know how PO Sanchez obtained the

keys. PO Baird resumed patrol at 6:45 p.m. PO Baird also mentioned that he may have requested § 87(2)(b) for his identification.

At the conclusion of his interview, PO Baird viewed the video footage detailed below and did not add any significant information to his statement thereafter.

Additional Officer Interviewed

On May 9, 2014, PO Finamore was interviewed at the CCRB (encl. F4-F5). PO Finamore denied hearing § 87(2)(b) mention having any medical condition or request medical attention. PO Finamore stated that he resumed patrol after he dropped § 87(2)(b) off at the stationhouse, and he denied seeing § 87(2)(b) later at the stationhouse. PO Finamore did not know whether PO Domenech entered the stationhouse.

§ 87(2)(g)

Medical Records

§ 87(2)(a) PHL §18(6)

§ 87(2)(a) PHL §18(6)

§ 87(2)(a) PHL §18(6)

NYPD Documents

30th Precinct Roll Call

The Roll Call indicates that PO Sanchez and PO Baird were assigned to Conditions together. PO Finamore and PO Domenech are listed as assigned to Sectors F and D, respectively (encl. H1-H7).

30th Precinct Command Log

The Command Log indicates that § 87(2)(b) arrived at the stationhouse at 5:40 p.m. and was removed to § 87(2)(b). (encl. J1).

Arrest for Incident and Disposition

- On December 9, 2013, the Manhattan District Attorney’s Office declined to prosecute the criminal case against § 87(2)(b) related to this incident (encl. J7).

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on an unspecified date, claiming that he had been falsely arrested and that his back injury had been aggravated, and seeking three million dollars as redress (encl. L1-L5).
- § 87(2)(a) Gen.Mun. §50-H(3) [REDACTED]

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B3).

Subject Officers CCRB History

- PO Sanchez has been a member of the service for eight years and there are no substantiated CCRB allegations against her (encl. B1).
- PO Baird has been a member of the service for nineteen years and there are no substantiated CCRB allegations against him (encl. B2).

Conclusion

Identification of Subject Officer

PO Sanchez admitted to stopping and arresting § 87(2)(b) PO Baird admitted to approaching § 87(2)(b) and participating in the stop and arrest of § 87(2)(b) Video footage show that PO Baird actively interacted with § 87(2)(b) during the stop.

Investigative Findings and Recommendations

Allegation Not Pled

§ 87(2)(g) [REDACTED]

§ 87(2)(g) [REDACTED]

§ 87(2)(g)

Allegation A – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Fitzgerald Sanchez questioned § 87(2)(b)

Allegation B – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Ronald Baird questioned § 87(2)(b)

It is undisputed that § 87(2)(b) was sitting down on stairs located inside the vestibule of his building, which is enrolled in the Federal Trespass Affidavit Program, when the officers approached him.

§ 87(2)(b) stated that PO Sanchez and PO Baird first asked him whether he lived inside the building and then requested his identification.

PO Sanchez stated that she observed § 87(2)(b) doing “something” which she could not distinguish. PO Sanchez added that she decided to investigate her observation, and that she first asked § 87(2)(b) for his identification and what he was doing there. PO Sanchez noted in her memo book that she suspected § 87(2)(b) of trespassing.

PO Baird stated that PO Sanchez only mentioned to him that she had observed an individual inside the building and asked for him to stop the vehicle to conduct a vertical patrol of the premise. PO Baird did not observe § 87(2)(b) make any movements prior to the officers’ approach. PO Sanchez eventually asked § 87(2)(b) for his identification and for him to prove he lives there. Soon thereafter, PO Baird asked § 87(2)(b) whether he could open the locked door in the vestibule.

According to People v. Debour, 40 N.Y.2d 210 (1976), officers need “some objective credible reason” that is “not necessarily indicative of criminality” to approach an individual and request information from him (encl. A1-A11). In People v. Ventura, 30 Misc. 3d 587 (Sup. Ct., New York Co. 2010), the court held that officers cannot question an individual in a building solely based on said individual’s presence inside there (encl. A12-A14).

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Fitzgerald Sanchez stopped § 87(2)(b)

Allegation D – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Ronald Baird stopped § 87(2)(b)

§ 87(2)(b) stated that PO Sanchez asked him whether he had keys to the building, at which point he provided his to her. PO Sanchez added that he tried to answer his phone, but that PO Sanchez instructed him not to do so.

PO Sanchez stated that § 87(2)(b) refused to answer some of her questions, moved his hands, reached toward his pockets, and punched one of his open palms. PO Sanchez added that § 87(2)(b)

§ 87(2)(b) lunged toward her, at which point he opened the door for § 87(2)(b) PO Sanchez further stated that she repeatedly told § 87(2)(b) that he could leave the building. Her memo book entries indicate that she suspected § 87(2)(b) of being a look out, engaging in burglary, and trespassing.

PO Baird indicated that he may have been the first officer to ask § 87(2)(b) a question. PO Baird added that, after he asked § 87(2)(b) whether he could do so, § 87(2)(b) opened a door inside the building.

The available video footage depicts that, as § 87(2)(b) was about to open the front door for § 87(2)(b) PO Sanchez walked back toward the door and extended one of her arms toward him, blocking his path to the door. PO Sanchez then walked away from the door when § 87(2)(b) walked back toward his initial position. They also show that PO Baird actively interacted with § 87(2)(b) throughout the incident.

According to People v. Moore, 93 A.D.3d 519 (1st Dept. 2012), an interaction is raised to a seizure whenever physical force is used, or if no physical force is used, the person is submitted to the assertion of authority (encl. A15-A17). Moreover, Debour also held that innocuous behavior alone will not generate a founded nor a reasonable suspicion, a prerequisite for a seizure, or stop, that a crime is at hand.

§ 87(2)(g)

Thus, it is recommended that **Allegations C and D** be closed as **substantiated**.

Allegation E – Abuse of Authority: Inside § 87(2)(b) in Manhattan, PO Fitzgerald Sanchez arrested § 87(2)(b)

As determined above, § 87(2)(b) was unlawfully stopped and was later arrested. It is undisputed that § 87(2)(b) § 87(2)(b)

It is undisputed that the entire incident took place inside the vestibule of § 87(2)(b)'s residence and that § 87(2)(b) was the only additional civilian there.

PO Sanchez claimed that § 87(2)(b) acted in an agitated manner by moving around, punching his own palm, reaching for his pockets, cursing at the officers, opening a door for an individual, and refusing to exit the building. PO Sanchez stated that she then decided to arrest § 87(2)(b) for trespass. PO Sanchez indicated in her memo book that § 87(2)(b) threatened her after he was placed in custody. PO Sanchez did not make any allegation that § 87(2)(b) acted in a threatening or dangerous manner prior to her decision to arrest him.

New York State Penal Law § 240.20 (1) indicates that one is “guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof,” “he engages in fighting or in violent, tumultuous or threatening behavior” (encl. A39).

§ 195.05 indicates that one is guilty of obstructing governmental administration when he “intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act,” or otherwise interferes with telecommunications systems or uses an animal to obstruct governmental administration (encl. A20).

§ 205.30 indicates that one is guilty of resisting arrest when he intentionally prevents or attempts to prevent a police officer from “effecting an authorized arrest of himself or another person” (encl. A30).

§ 240.30 (1) indicates that one is “guilty” of aggravated harassment in the second degree when, with intent to harass, annoy, threaten, or alarm another person, he” uses written or electronic communication to cause annoyance or alarm (encl. A40).

People v. Square, 20 Misc. 3d 1126A (Crim. Ct., New York Co. 2008) held that a count of disorderly conduct was to be dismissed due to the lack of a public disturbance element, while explaining that the defendant’s disruptive behavior was of individual rather than public dimension. The court added that a defendant may be convicted of obstructing governmental administration for interfering with a police officer in the performance of an official function if it is established that the police were engaged in authorized conduct in the first place. Lastly, the court determined that a subsequent resisting arrest charge was to be dismissed considering that he resisted an unlawful arrest that was based on charges that were incorrectly pressed against him (encl. A57-A60).

§ 87(2)(g)

[REDACTED]

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Allegation F – Offensive Language: Inside the 30th Precinct stationhouse, PO Fitzgeralda Sanchez made remarks to § 87(2)(b) based upon race.

§ 87(2)(g)

Investigator: _____ Keyne Jean Villert _____
Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____

 Title/Signature Print Date